

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

Index No.

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CONCETTA HAYLES,
Plaintiff,

-against-

THE CITY OF NEW YORK,
NEW YORK CITY POLICE OFFICER
BRIAN HELLBERG, Shield # 8253,
Criminal Intelligence Bureau,
NEW YORK CITY POLICE OFFICERS
JOHN DOES ONE through TEN,
Criminal Intelligence Bureau,
Defendants.

**VERIFIED
COMPLAINT**

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Plaintiff, CONCETTA HAYLES, by her Attorney, VICTOR M. BROWN, ESQ., as and for a
verified complaint alleges respectfully and states as follows:

FOR A FIRST CAUSE OF ACTION

NATURE OF ACTION

1. This is a Civil Rights, False Arrest, Intentional damage and taking of property, Negligence and/or Negligent supervision action, Intentional and Negligent infliction of Emotional Distress action for compensatory and punitive damages proximately resulting from Plaintiff having been falsely arrested, having her property damaged, and loss of income as a result of being unlawfully arrested by the above captioned Defendant New York City Officers on April 21, 2021 at the address of 111-38 134th Street, Queens, New York.

NOTICE OF CLAIM

2. That on June 29, 2021, Plaintiff CONCETTA HAYLES, prior to the bringing of the within action, and within ninety days after the date of the alleged incident, filed a Notice of Claim which was duly served upon the Defendant(s).

3. That more than thirty days have elapsed since the service of the said Notice of Claim and notice of intent to sue upon the Defendant(s).
4. That the Defendant(s) and its Comptroller have failed, neglected to pay, settle, compromise or adjust the claim of the Plaintiff.
5. That this action has been commenced within one year and ninety days after the cause of action of Plaintiff accrued.
6. That the Plaintiff has duly complied with all the conditions precedent to the commencement of this action, including submission to an inquiry concerning the justness of the claim , after filing a Notice of Claim on June 29, 2021 pursuant to General Municipal Law 50.

THE PARTIES

7. That at all times mentioned, the Plaintiff, CONCETTA HAYLES, is a United States citizen, who was, and still is a resident of the State of New York, residing in Queens County.
8. That at all times mentioned, Defendant CITY OF NEW YORK, is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a Police Department, which acts as its agent in the area of Law Enforcement and for which it is ultimately responsible. Defendant CITY OF NEW YORK assumes the risks incidental to the maintenance of a Police Department, and the employment of Police Officers, as said risk attaches to the public consumers of the services provided by THE NEW YORK CITY POLICE DEPARTMENT.
9. That upon information and belief, at all times relevant, Defendant CITY OF NEW YORK, employed Police Officers, Corrections Officers and medical personnel and others hereinafter mentioned in this complaint.
10. THE NEW YORK CITY POLICE DEPARTMENT, while not a named Defendant, is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to carry out all police functions for Defendant CITY OF NEW YORK and assumes the risk incidental to the maintenance of a police force and the employment of Police Officers

11. Defendant(s), NEW YORK CITY POLICE OFFICER BRIAN HELLBERG, Shield Number 8253, and NEW YORK CITY POLICE OFFICERS JOHN DOE NUMBERS ONE through TEN, upon information and belief, all of the Criminal Intelligence Unit of THE NEW YORK CITY POLICE DEPARTMENT, were and are, at all times relevant, Officers, employees and agents of Defendant CITY OF NEW YORK. Defendant Officer HELLBERG and Defendant NEW YORK CITY POLICE OFFICERS JOHN DOE ONE through TEN are sued individually and in their official capacities. At all times relevant, Defendant NEW YORK CITY POLICE OFFICER HELLBERG and Defendant NEW YORK CITY POLICE OFFICERS JOHN DOES ONE through TEN were acting under color of State Law and in the scope of their duties and functions as agents, servant and employees of THE NEW YORK CITY POLICE DEPARTMENT and Defendant CITY OF NEW YORK and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. Defendant Officers HELLBERG and JOHN DOES ONE through TEN received training in making arrests, search warrant execution, in effecting an arrest, and legal training from Defendant CITY OF NEW YORK and THE NEW YORK CITY POLICE and were acting for and on behalf of THE NEW YORK CITY POLICE DEPARTMENT and Defendant CITY OF NEW YORK at all times relevant herein with the power and authority vested in them as police officers, agents and employees of THE NEW YORK CITY POLICE DEPARTMENT and Defendant CITY OF NEW YORK and incidental to their lawful duties as officers, employees and agents of THE NEW YORK CITY POLICE DEPARTMENT and Defendant CITY OF NEW YORK.

AS AND FOR A FIRST CAUSE OF ACTION

12. Plaintiff alleges that on April 15, 2021, at approximately 8:30 p.m. at 111-38 134th Street, Queens County New York, Plaintiff CONCETTA HAYLES was inside her residence with her family, when the named Defendant members of the NEW YORK CITY POLICE DEPARTMENT, Defendant OFFICER HELLBERG and Defendant NEW YORK CITY POLICE OFFICERS JOHN DOE ONE through TEN entered the location by the utilization of force, breaking the front door of the

Plaintiff's residence to gain entry. The Plaintiff, her husband, and the Plaintiff's tenants were then physically handcuffed, and subjected to unlawful searches by the above named Defendant Officers, including Defendant NEW YORK CITY POLICE OFFICER HELLBERG, Shield Number 8253, of the Criminal Intelligence Bureau, and Defendant(s) NEW YORK CITY POLICE OFFICERS JOHN DOES ONE through TEN, upon information and belief, of the Criminal Intelligence Bureau. The named Defendant Officers also entered the Plaintiff's tenant's apartment. The Plaintiff was held in handcuffs by the Defendant Officers for approximately thirty minutes, while the Plaintiff's husband was handcuffed for approximately three and a half hours, during which time the Defendant Officers searched the premises and the garage in the back of the Plaintiff's property. Upon further information and belief, the Defendant Officers caused damage to the Plaintiff's personal property and the Plaintiff's physical property itself, damaging doors, locks and furniture inside of the Plaintiff's residence. Upon further information and belief, the conduct of the Defendant Officers and named Defendants caused the Plaintiff to suffer extreme emotional upset, and caused her tenants to move out of the Plaintiff's property, causing the Plaintiff loss of rental income. As a result of the Defendant Officers' actions, the Plaintiff was required to make numerous repairs to her property to repair the damage done to her property by the named Defendant Officers. Upon further information and belief, the Defendant Officers ignored Plaintiff's repeated questions regarding the reasons for their presence, the Plaintiff's arrest and her husband's arrest, and the searching of Plaintiff's residence and tenant's residence, and the damage caused to the Plaintiff's property by the Defendant Officers, who found no contraband at the Plaintiff's residence or the tenants' residence.

13. That upon information and belief, as a result of the false arrest of the Plaintiff, her husband, and the Plaintiff's tenants were unlawfully detained for approximately five hours, causing the Plaintiff to suffer extreme emotional distress and public humiliation and embarrassment.
14. The amount of damages sought in this action exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A SECOND CAUSE OF ACTION

15. The Plaintiff repeats and realleges each and every allegation contained in Paragraphs One (1) through Fourteen (14) with the same force and effect as if set forth here at length.
16. The Plaintiff alleges that during the effectuation of the search of the Plaintiff's residence named Defendants, NEW YORK CITY POLICE OFFICER HELLBERG, Shield Number 8253, NEW YORK CITY POLICE OFFICERS JOHN DOE ONE through TEN, intentionally damaged the interior of the Plaintiff's residence, causing approximately \$5,000.00 worth of damage, and causing Plaintiff to suffer monetary damages to repair her property and causing extreme emotional distress to the Plaintiff.
17. That upon information and belief, named Defendant CITY OF NEW YORK, is responsible for the training and supervision of the named Defendant Officers, resulting in the aforementioned and hereinafter mentioned harm to Plaintiff.
18. The amount of damages sought in this action exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A THIRD CAUSE OF ACTION

19. The Plaintiff repeats and realleges each and every allegation contained in Paragraphs One (1) through Eighteen (18) with the same force and effect as if set forth here at length.
20. The Plaintiff alleges that as a result of being arrested by the named Defendant Officers, the Plaintiff's tenants moved out of their residence in the Plaintiff's property, causing the Plaintiff to lose rental income, and causing the Plaintiff extreme emotional upset and embarrassment as a result of the conduct of the Defendant Officers.
21. At the time of Plaintiff's arrest, Defendant New York City Police Officers HELLBERG and JOHN DOES ONE through TEN were employees and or servants of said Defendant CITY OF NEW YORK, and were acting as agents of Defendant CITY OF NEW YORK, in doing the acts complained of herein and within the scope of their authority.

22. That upon information and belief, solely by reason of the foregoing negligent training and supervision of the named Defendant New York City Police Officers by Defendant CITY OF NEW YORK, the Plaintiff was forced to pay for repairs to her residence, and suffered thousands of dollars in loss of income.
23. The amount of damages sought in this action exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A FOURTH CAUSE OF ACTION

24. The Plaintiff repeats and realleges each and every allegation contained in Paragraphs One (1) through Twenty Three (23) with the same force and effect as if set forth here at length.
25. That upon information and belief, solely by reason of the foregoing negligent training, supervision of Defendant CITY OF NEW YORK of the named Defendant New York City Police Officers, resulting in Plaintiff's false arrest and detention, unlawful searches of her person and intentional destruction of her personal effects, Plaintiff's civil rights, pursuant to United States and New York State Constitutions, were violated by the named Defendant Officers and Defendant CITY OF NEW YORK, causing the Plaintiff to suffer great mental distress, and injuring his reputation and character at his place of employment and in the public.
26. The amount of damages sought in this action exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

WHEREFORE, Plaintiff demands judgment against the Defendant(s) in the amount of One Million Dollars (\$1,000,000.00) together with the costs and disbursements of this action.

/S/

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Attorney for Plaintiff

Dated:
April 1, 2022